Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

(Declaration regarding events encountered pursuant to BDS Clause 1)

Bidder's Name and Address:

Name:…….

Address:……..

To:

Contract Services & Material Management,
Power Grid Corporation of India Limited,
Northern Region-I Headquarter
SCO Bay no. 5 to 10, Sector 16A,
Faridabad, Haryana-121002

Dear Sir,

1.0 In accordance with the relevant provisions of the bidding documents inter-alia including for assessment of capacity and capability, we furnish herewith our data/details/documents along with other information, as follows

Sr. No.	**Event**	
1.	Whether there was Termination# of Contract(s) due to Contractor's default	☐ Yes ☐ No
2.	Whether there was Encashment of CPG(s) due to non-performance	☐ Yes ☐ No
3.	Whether there was repeated failure of major Equipment(s) while in service*	☐ Yes ☐ No
4.	Whether substantial portion of works (more than 50% of the Contract**) is sub-contracted, under an existing Contract	☐ Yes ☐ No
5.	Whether more than 25% of the Contract price (awarded value), in aggregate, is paid to sub-contractors/suppliers as Direct payment, under an existing Contract, due to financial position of Contractor	☐ Yes ☐ No
6.	Firm has been referred to NCLT under Insolvency & Bankruptcy Code *(IRP has been appointed or Liquidation proceedings have been initiated under IBC)*	☐ Yes@ ☐ No

Note:

1. *Information regarding events at Sl. No. 1 to 5 shall be furnished for events occurred during last one year under the contract(s) executed by you for POWERGRID (Owned as well as Consultancy)*

   # Partial offloading under a Contract and/or Facilitation beyond 10% of the Contract Price are also to be treated as Termination

   For the said purpose, the Contract Price means the Contract Price of the Facilities notwithstanding the Construction of the Contract.

**2. In case POWERGRID has issued a letter in this regard wherein the firm has been put on hold from award of further contract(s) for a specified period and this specified period of hold is yet to expire, the bidder shall indicate "Yes" against this event.*

***3. For the purpose of working out 50% of the Contract, following shall be taken into account suitably:*

   (a) Scope of the contract which is permissible to be sub-contracted as per bidding documents, shall be excluded.

   (b) Scope of the Contract which primarily relates to the Qualification Requirement (QR) of the bidder as illustrated below:

Sl. No.	***Type of Package/ Contract***	***Main aspect of the QR***	***Criteria for working out 50% of the Contract***
1.	*Conductor/Insulator Package*	*Manufacture & Supply*	*50% of the total supply of Conductor/Insulator under the Contract*
2.	*Tower Package*	*Construction of Transmission Line*	*50% of the total Transmission Line construction under the Contract*
3.	*Substation(AIS) Package*	*Construction of bays*	*50% of the total bays construction under the Contract*
4.	*Transformer/Reactor*	*Manufacture & Supply*	*50% of the total supply of Transformer/Reactor under the Contract*
5.	*Substation(GIS) Package*	*Manufacture & Supply of GIS bays*	*50% of the total supply of GIS bays under the Contract*

   The guiding principles as illustrated above shall be followed while dealing with other packages/contracts.

@4. Regarding Sl. No. 6, in case of 'Yes', following information shall be submitted additionally:

Date on which the firm has been referred to NCLT under Insolvency & Bankruptcy Code (IRP has been appointed or Liquidation proceedings have been initiated under IBC)	……
Whether the process under IBC has been concluded (If yes, supporting documents be submitted)	☐ *Yes* ☐ *No*

2.0 We confirm that the above information/declarations and documents submitted in support of the same are true and correct to the best of our knowledge. We understand that any false declaration and/or misrepresentation of facts and/or false/forged documents/information may lead to our debarment from participation in Employer tenders and that our Bid Security/Contract Performance Guarantee may be forfeited besides other actions as deemed to be appropriate as per the provisions of the Bidding Documents/Integrity Pact/Employer's policy.

Date :

Place :

Printed Name :

Designation :

Attachment-8

Bidder shall submit 02 set on INR 100/- Stamp paper –

INTEGRITY PACT

Between

Power Grid Corporation of India Limited
having its Registered Office at B-9, Qutab Institutional Area, Katwaria Sarai,
New Delhi – 110 016

hereinafter referred to as

"POWERGRID",

and

_____
[Insert the name of the Sole Bidder/Lead Partner of Joint Venture]

having its Registered Office at _____
(Insert full Address)

_____

and

_____
[*Insert the name of the Partner(s) of Joint Venture, as applicable]*

having its Registered Office at _____
(Insert full Address)

_____

hereinafter referred to as **"The**

Bidder/Contractor"Preamble

POWERGRID intends to award, under laid-down organisational procedures, contract(s) for _____
[Insert the name of the package]

_____ Package and Specification Number_____. POWERGRID values full compliance with all
[Insert Specification Number of the package]

relevant laws of the land, rules, regulations, economic use of resources, and of fairness / transparency in its relations with its Bidders/ Contractors.

In order to achieve these goals, POWERGRID and the above named Bidder/Contractorenter into this agreement called '**Integrity Pact'** which will form a part of the bid.

It is hereby agreed by and between the parties as under:

Section I - Commitments of POWERGRID

(1) POWERGRID commits itself to take all measures necessary to prevent corruption and to observe the following principles :

a) No employee of POWERGRID, personally or through family members, will in connection with the tender, or the execution of the contract,demand, take a promise for or accept, for him/herself or third person, any material or other benefit which he/she is not legally entitled to.

b) POWERGRID will, during the tender process treat all Bidder(s) withequity, fairness **and reason**. POWERGRID will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/ additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.

(c) POWERGRID will exclude from evaluation of Bids its such employee(s) who has any **personal** interest in the Companies/Agencies participating in the Bidding/Tendering process **and all known prejudiced persons**.

(2) If POWERGRID obtains information on the conduct of any of its employee which is a criminal offence under the IPC / PC Act , or if there be a substantive suspicion in this regard, POWERGRID will inform its Chief Vigilance Officer and in addition disciplinary actions can be initiated under POWERGRID's Rules.

Section II - Commitments of the Bidder/Contractor

(1) The Bidder/Contractor commits **itself** to take all measures necessary to prevent corruption. The **Bidder/Contractor** commits **itself** to observe the following principles during **its** participation in the tender process and during the contract execution:

a) The Bidder/Contractor will not, directly or through any other person or firm, offer, promise or give **to any of POWERGRID's** employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which it is not legally entitled

to, in order to obtain in exchange an advantage of any kind whatsoeverduring the tender process or during the execution of the contract.

b) The Bidder/Contractor will not enter into any illegal **or undisclosed** agreement or understanding, whether formal or informal with other Bidders/Contractors. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or actions to restrict competitiveness or to introduce cartelization in thebidding process.

c) **The Bidder/Contractor shall not pass any information provided by POWERGRID as part of business relationship to others and shall not commit any offence under PC / IPC Act**.

d) The Bidder/Contractor of foreign origin shall disclose the name andaddress of the Agents/representatives in India, if any, involved directly or indirectly in the Bidding. Similarly, the Bidder/Contractor of Indian Nationality shall furnish the name and address of the foreign principals, if any, involved directly or indirectly in the Bidding.

e) The Bidder/Contractor will, when presenting his bid, disclose any and all **payments made**, or committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of thecontract and/or with the execution of the contract.

f) The Bidder/Contractor will not misrepresent facts or furnish false/forged documents/information in order to influence the bidding process or the execution of the contract to the detriment of POWERGRID.

g) The Bidder/Contractor shall ensure adoption of Integrity Pact by its Sub-contractors and shall be responsible for the same.

(2) The Bidder/Contractor will not instigate third persons to commit offencesoutlined above or be an accessory to such offences.

Section III- Disqualification from tender process and exclusion from futurecontracts

(1) If the Bidder, before contract award, has **committed a transgression** through a violation of Section II or in any other form such as to put his reliability or credibility as Bidder into question, POWERGRID may disqualify the Bidder from the tender process or terminate the contract, if already signed, for suchreason.

(2) If the Bidder/Contractor has **committed a transgression** through a violation ofSection II such as to put his reliability or credibility into question, POWERGRIDmay, after following due procedures, **ban /blacklist the Bidder/Contractor in**

line with POWERGRID's policy for "Black-Listing of Firms / Banning of Business". The imposition and duration of the **ban** will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder/Contractor and the amount of the damage. The **ban** will be **imposed fora maximum of 3 years**.

(3) If the Bidder/Contractor can prove that he has restored/recouped the damage caused by him and has installed a suitable corruption prevention system, POWERGRID may revoke the **ban** prematurely.

Section IV - Liability for violation of Integrity Pact

(1) If POWERGRID has disqualified the Bidder from the tender process prior to theaward under Section III, POWERGRID **is entitled for forfeiture of** the Bid Guarantee under the Bid.

(2) If POWERGRID has terminated the contract under Section III **or if POWERGRID is entitled to terminate the contract under Section III**, POWERGRID **shall be entitled** to forfeit the Contract Performance Guarantee of this contract, **in full or part thereof as may be decided**, besides resorting to other remedies under the contract.

Section V- Previous Transgression

(1) The Bidder shall **disclose in its Bid any** transgressions occurred in the last **10** years with any other Public Sector Undertaking **or Government Department or any other Company, in any country, that may impinge on the Anti-corruptionprinciple**.

(2) If the Bidder makes incorrect statement on this subject, **it** can be disqualified from the tender process or the contract, if already awarded, can be terminatedfor such reason and **further action can be taken in line with POWERGRID's policies.**

Section VI - Equal treatment to all Bidders / Contractors

(1) POWERGRID will enter into agreements with identical conditions as this one with all Bidders.

(2) POWERGRID will disqualify from the tender process any bidder who does not sign this Pact or violate its provisions.

Section VII - Punitive Action against violating Bidders / Contractors

If POWERGRID obtains knowledge of conduct of a Bidder or a Contractor or **its** subcontractor or of an employee or a representative or an associate of a Bidder or Contractor or his Subcontractor which constitutes corruption, or if POWERGRID has substantive suspicion in this regard, POWERGRID will inform the Chief Vigilance Officer (CVO).

(*)**Section VIII - Independent External Monitor/Monitors**

(1) POWERGRID has appointed a panel of Independent External Monitors (IEMs) for this Pact with the approval of Central Vigilance Commission (CVC), Government of India. **The names of the IEMs have been indicated in the Bidding Documents.**

(2) The **panel of IEMs shall** review independently and objectively, whether and towhat extent the parties comply with the obligations under this agreement. **Thepanel of IEMs** has right of access to all project documentation. **The panel of IEMs** may examine any complaint received by **them** and submit a report to Chairman-cum-Managing Director, POWERGRID, **giving joint findings**, at the earliest. **The panel** of IEMs may also submit a report directly to the CVO and the CVC, in case of suspicion of serious irregularities attracting the provisions ofthe PC Act.

(3) The IEM is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He / **She** reports to the Chairman-cum-Managing Director, POWERGRID.

(4) The Bidder(s)/Contractor(s) accepts that the IEM has the right to access without restriction to all documentation of POWERGRID related to this contract including that provided by the Contractor/Bidder. The Bidder/Contractor will also grant the IEM, upon his / **her** request and demonstration of a valid interest, unrestricted and unconditional access to **their** documentation. The same is applicable to Subcontractors. The IEM is under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s)/Subcontractor(s) with confidentiality.

(5) POWERGRID will provide to the IEMs information as sought by him / **her** which could have an impact on the contractual relations between POWERGRID and the Bidder/Contractor related to this contract. **The IEMs shall also sign declaration on 'Non-Disclosure of Confidential Information' and of 'Absenceof Conflict of Interest'. In case of any conflict of interest arising at a later date,the IEM shall inform Chairman-cum-Managing Direct**or, **POWERGRID and recuse himself/herself from that case**

(6) As soon as the IEM notices, or believes to notice, a violation of this agreement, he **/ she** will so inform the Chairman-cum-Managing Director, POWERGRID and request the Chairman-cum-Managing Director, POWERGRID to

discontinue or take corrective action, or to take other relevant action. The IEM can in this regard submit non-binding recommendations. Beyond this, the IEM has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, the IEM shall give an opportunity to POWERGRID and the Bidder/Contractor, as deemed fit, to present its case before making its recommendations to POWERGRID.

(7) The IEM will submit a written report to the Chairman-cum-Managing Director, POWERGRID within 8 to 10 weeks from the date of reference or intimation to him by POWERGRID and, should the occasion arise, submit proposals for correcting problematic situations.

(8) If the IEM has reported to the Chairman-cum-Managing Director, POWERGRID, a substantiated suspicion of an offence under **PC / IPC Act**, and the Chairman-cum-Managing Director, POWERGRID has not, within the reasonable time taken visible action to proceed against such offence or reportedit to the CVO, the Monitor may also transmit this information directly to the CVC, Government of India.

(9) While representing any matter in relation to the Integrity pact inter-alia including its transgression to the panel of IEMs, POWERGRID and Bidder/Contractor shall not approach the court of law and await the decision of the IEM in the matter.

(10) The word '**IEM**' would include both singular and plural.

(*) This Section shall be applicable for only those packages wherein the IEMs have been identified in Section – I : Invitation for Bids and/or Clause ITB 9.3 in Section – III: Bid Data Sheets of Conditions of Contract, Volume-I of the Bidding Documents.

Section IX - Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor after the closure of the contract and for all other Bidder's six month after the contract has been awarded.

Section X - Other Provisions

(1) This agreement is subject to Indian Law. Place of performance and jurisdiction isthe establishment of POWERGRID. The Arbitration**/Conciliation** clause provided in the maintender document / contract shall not be applicable for any issue / dispute arising under Integrity Pact.

(2) Changes and supplements as well as termination notices need to be made in writing. **Side agreements have not been made**.

(3) If the Contractor is a partnership firm or a consortium or Joint Venture, this agreement must be signed by all partners, consortium members and Joint Venture partners.

(4) Nothing in this agreement shall affect the rights of the parties available under the General Conditions of Contract (GCC) and Special Conditions of Contract (SCC).

(5) Issues like Warranty/Guarantees etc. shall be outside the purview of IEMs.

(6) Views expressed or suggestions/submissions made by the parties and the recommendations of the ***CVO/***IEM# in respect of the violation of this agreement,shall not be relied on or introduced as evidence in the arbitral**/Conciliation** or judicial proceedings (arising out of the arbitral**/Conciliation** proceedings) by the parties in connection with the disputes/differences arising out of the subject contract.

CVO shall be applicable for packages wherein IEM are not identified in Section IFB/BDS of Condition of Contract, Volume-I. IEM shall be applicable for packages wherein IEM are identified in Section IFB/BDS of Condition of Contract, Volume-I.

(7) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

(Signature) _____	(Signature) _____
(For & On behalf of POWERGRID)	**(For & On behalf of Bidder/ Partner(s)of Joint Venture/ Contractor)**
(Office Seal)	(Office Seal)
Name:_____	Name:_____
Designation:_____	Designation:_____
Witness 1 :_____	Witness 1 :_____
(Name & Address) _____	(Name & Address) _____
_____	_____
_____	_____

Witness 2 :_____

(Name & Address) _____

_____

_____

Witness 2 :_____

(Name & Address) _____

_____

_____

Attachment-4

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

Format for Affidavit of Self certification regarding Local Content in line with PPP-MII order **and 'Public Procurement (Preference to Make in India) to provide for Purchase Preference (linked with local content)' order dated 28/07/2020 and 17/09/2020 issued by Ministry of Power** (hereinafter **MoP order**), if applicable, and any subsequent modifications/Amendments**,** if any to be provided on non-judicial stamp paper of Rs. 100/- or on OEM's letterhead.

Date:

I _____S/o, D/o, W/o, _____Resident of_____ hereby solemnly affirm and declare as under:

That I will agree to abide by the terms and conditions of the Public Procurement (Preference to Make in India) Order, 2017 of Government of India issued vide Notification No:P-45021/2/2017 -BE-II dated 15/06/2017, its revision dated **04/06/2020** (hereinafter **PPP-MII order**),

That the information furnished hereinafter is correct to the best of my knowledge and belief and I undertake to produce relevant records before the procuring entity/POWERGRID or any other Government authority for the purpose of assessing the local content of goods/services/works supplied by me for Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation.

.

That the local content for all inputs which constitute the said goods/services/works has been verified by me and I am responsible for the correctness of the claims made therein.

That the 'Local Content 'as defined in the PPP-MII order and MoP order in the goods/services/works supplied by me for Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation is …… percent (%).

That the goods/services/works supplied by me for Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation meet the 'Local Content' requirement as defined in the PPP-MII order **and MoP order for 'Class –I local supplier'**.

That the value addition for the purpose of meeting the 'Local Content 'has been made by me at ..... (*Enter the details of the location(s) at which value addition is made)*.

That in the event of the local content of the goods/services/works mentioned herein is found to be incorrect and not meeting the prescribed Local Content criteria, based on the assessment of procuring agency (ies)/POWERGRID/Government Authorities for the purpose of assessing the local content, action shall be taken against me in line with the PPP-MII order, **MoP order** and provisions of the Integrity pact/ Bidding Documents.

I agree to maintain the following information in the Company's record for a period of 8 years and shall make this available for verification to any statutory authority.

i Name and details of the Local Supplier
(Registered Office, Manufacturing unit location, nature of legal entity)

ii. Date on which this certificate is issued

iii. Goods/services/works for which the certificate is produced

iv. Procuring entity to whom the certificate is furnished

v. Percentage of local content claimed and whether it meets the Local Content prescribed for **'Class –I local supplier'/'Class-II local supplier'**

vi. Name and contact details of the unit of the Local Supplier (s)

vii. Sale Price of the product

viii Ex-Factory Price of the product

ix. Freight, insurance and handling

x. Total Bill of Material

xi List and total cost value of input used to manufacture the Goods/to provide services/in construction of works

xii. List and total cost of input which are domestically sourced. Value addition certificates from suppliers, if the input is not in-house to eb attached

xiii. List and cost of inputs which are imported, directly or indirectly

For and on behalf of..... (Name of firm/entity)
Authorized signatory (To be duly authorized by the Board of Directors)
<Insert Name, Designation and Contact No.>

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

Certification by the Bidder per order no. F.No.6/18/2019-PPD dated 23/07/2020 issued by Public Procurement Division, Department of Expenditure, Ministry of Finance, Government of India (DoE Order) in line with BDS 1.0

Bidder's Name and Address:

Name:…….

Address:……..

To:

Contract Services & Material Management,
Power Grid Corporation of India Limited,
Northern Region-I Headquarter
SCO Bay no. 5 to 10, Sector 16A,
Faridabad, Haryana-121002

Dear Sir,

We have read and understood the provisions of Order no. F.No.6/18/2019-PPD (Order Public Procurement no.1) dated 23/07/2020 regarding "Restriction under Rule 144(xi) of General Financial Rules" and F.No.6/18/2019-PPD (Order Public Procurement no.2) dated 23/07/2020 regarding "Exclusions from Restriction under Rule 144(xi) of General Financial Rules" issued by Public Procurement Division, Department of Expenditure, Ministry of Finance, Government of India [hereinafter collectively "**DoE Order**''] and any subsequent modifications/Amendments, if any.

Particularly, we, the Bidder, have read the clause regarding restrictions on procurement from a 'Bidder of a country which shares a land border with India' and on sub-contracting to contractors from such countries.

We certify that we, the bidder and/or our subcontractor/sub vendor is/are not from such a country or, if from such a country, has been registered as per provisions of the Bidding Documents with the Competent Authority and will not subcontract any work to a subcontractor/sub vendor from such countries unless such subcontractor/sub vendor fulfils all requirement in this regard and is eligible to be considered. [*Where applicable, evidence of valid registration by the Competent Authority shall be attached*.]

We further declare that any misrepresentation or submission of false/forged document/information in this regard shall be dealt with as per the provisions of Integrity Pact and/or Bidding Documents and/or POWERGRID's policy and procedures.

Date:

Printed Name:

Place:

Designation:

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

(Declaration of Key Managerial Person and Power of Attorney holder)

Bidder's Name and Address:

Name:…….

Address:……..

To:

Contract Services & Material Management,
Power Grid Corporation of India Limited,
Northern Region-I Headquarter
SCO Bay no. 5 to 10, Sector 16A,
Faridabad, Haryana-121002

Dear Sir,

1. We confirm that the declarations made in our bid, particularly regarding eligibility/qualification data and documents submitted in our bid in support of the declarations, are true and correct to the best of our knowledge.

2. We confirm that in support of meeting the Technical experience requirement, we have enclosed self-certified copy of Contract/ Award Letter and certificate from the utility for which the contract has been executed.

3. We shall furnish clarification to bid, if any sought by Employer. We understand that if we fail to rectify/furnish the requested documents if any, within 3 working days' notice, our bid is liable to be rejected.

4. We understand that any false declaration and/or misrepresentation of facts and/or furnishing of false/forged documents /information may lead to our debarment from participation in Employer tenders and that our Bid Security/ Contract Performance Guarantee may be forfeited besides other actions as deemed to be appropriate as per the provisions of the Bidding Document/Integrity Pact/Employer's policy.

5. We also confirm that the Employer may verify the supporting documents/ details in connection with above declarations. We further understand that in case of any unethical practices inter-alia including any misrepresentation of facts, submission of false and/or forged details/ documents/ declaration by us, we may be debarred from the participation in Employer's tenders in future as considered appropriate by Employer and our Bid Security/ Contract

Performance Guarantee shall be forfeited besides taking other actions as deemed appropriate.

Date : **Printed Name :**

Place : **Designation :**

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

(Declaration regarding Ex-employees of POWERGRID in our Organisation)

Bidder's Name and Address:

Name:…….

Address:……..

To:

Contract Services & Material Management,
Power Grid Corporation of India Limited,
Northern Region-I Headquarter
SCO Bay no. 5 to 10, Sector 16A,
Faridabad, Haryana-121002

Dear Sir,

1. We declare that we are aware of and have gone through the "Code of Business Conduct and Ethics for Senior Management Personnel" and "Code of Buisness Conduct and Ethics for Board Members" of POWERGRID (hereinafter referred to as the "Code of Conduct"). We further understand that as per the "Code of Conduct", Senior Management Personnel including Board Members, who have retired/ resigned from POWERGRID, shall not accept any appointment or post, as detailed in the referred "Code of Conduct", within 1 year from the date of cessation of service/ directorship unless approved by the competent authority.

   Accordingly, we hereby furnish the details of ex-employees of POWERGRID who had retired/ resigned at the level of Chief General Manager and above from POWERGRID and subsequently have been employed by us:

Sl. No.	Name of the person with designation in POWERGRID	Date of Retirement/ resignation from POWERGRID	Date of joining and designation in our organisation
1			
2			
3			

☑

In case the date of joining in the bidder's organization of such ex-employee is within 1 year from the date of retirement/ resignation from POWERGRID, No Objection Certificate/ approval from the competent authority must be furnished along with the bid or subsequent through clarification persuant to ITB Clause 21.

In case of non-submission of No Objection Certificate/ approval of the competent authority, as required, we understand that POWERGRID shall deal with such case as per its Policy and Procedure in vogue, which may also result in rejection of our bid. We also confirm that POWERGRID shall be the sole judge in this regard.

We further declare that any misrepresentation or submission of false/ forged documents/ information in this regrd shall be dealt with as per the provisions of the Integrity Pact/ or the Bidding Documents and/ or POWERGRID's policy and procedures.

Date : **Printed Name :**

Place : **Designation :**

Note:

1. "Code of Business Conduct and Ethics for Senior Management Personnel" and "Code of Buisness Conduct and Ethics for Board Members" are available on POWREGRID's website https://www.powergridindia.com.

2.The information in similar format should be furnished for each partner of joint venture in case of joint venture bid.

3. In case bidder has furnished no details on ex-employees of POWERGRID or has left blank or has indicated '-' against the same, it shall be deemed that they have not employed any such person in their organization.

Attachment-9

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

(**Undertaking regarding submission of original/Hard copy part of the bid)**

Bidder's Name and Address:	**To:**
Name:	Contract Services & Material Management, Power Grid Corporation of India Limited, Northern Region-I Headquarter SCO Bay no. 5 to 10, Sector 16A, Faridabad, Haryana-121002
Address:	

Dear Sir,

1.0 We have read the provisions of the bidding documents regarding submission of original/ Hard copy part of the bid. Accordingly, as per provision of the Bidding Documents, we hereby confirm the following:

(i) We have uploaded the scanned copy of the requisite documents in accordance with the bidding provisions along with the soft part of the bid.

(ii) We shall furnish all the original/Hard copy part of the bid in physical form on receipt of request from the Employer. Further, there shall be no contradictions/ inconsistencies between the documents submitted in physical form and the scanned version submitted along with the soft part of the bid.

2.0 We also accept that in case of our failure of submission of documents in original/hard part, the same shall be considered as withdrawal of bids and Employer has the right to take punitive measures against us as deemed fit.

Date:	**Printed Name:**
Place:	**Designation:**

[Note: The Bidder (Lead Partner in case of Joint Venture) shall submit the undertaking on the company's letterhead].

Attachment-10

Supply of 220 KV XLPE cable along with termination module & accessories including laying and termination at 400/220 kV Mandola substation

(Price Adjustment Data)

Bidder's Name and Address:

Name:…….

Address:……..

To:

Contract Services & Material Management,
Power Grid Corporation of India Limited,
Northern Region-I Headquarter
SCO Bay no. 5 to 10, Sector 16A,
Faridabad, Haryana-121002

Dear Sir,

1.0 We hereby furnish the relevant details pertaining to the price adjustment provisions for equipment as specified in your specifications and documents for the subject Cable package. The necessary documentary evidence is enclosed:

S.No	Name of Materials/Labour	Value of Co-efficients	Name of Published Index	Value of Index as 30 days prior to date set for opening of bids
1	2	3	4	5
A	XLPE Cable			
(a)	XLPE Compound, a=	0.15		
(b)	Published Price of Metal			
(i)	Aluminum (per MT)			
(ii)	Copper (per MT)			
(C)	Weight in MT of Metal per km (size wise)			
(i)				
(ii)				
(iii)				
(iv)				

Note:

Indices should be internationally recognized published price indices.

Date :

Place :

Printed Name :
Designation :